

		pleading requirements to state a cause of action.” (<i>Id.</i> at p. 1486.) Defendants shall give notice.
54.	Geng v. Che 2020-01161695	Defendant Shandong Oriental Ocean Group Co. Ltd.’s demurrer to the Third Amended Complaint [TAC] is SUSTAINED in part, with leave to amend, and OVERRULED in part. (Code Civ. Proc., § 340.10, subds. (d), (e), (f).) First, the TAC is not so uncertain that defendant cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Code Civ. Proc., § 430.10, subd. (f); <i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Also, moving party has not requested judicial notice of any prior pleadings in connection with its “sham” pleading argument. (<i>Owens v. Kings Supermarket</i> (1988) 198 Cal.App.3d 379, 384.) Even if it had, the TAC is not a “sham” as defendant does not assert a challenge to Geng’s claim. <u>1st cause of action: breach of contract.</u> The demurrer to this cause of action is SUSTAINED, with leave to amend, as to plaintiff David Hsiu, and OVERRULED as to plaintiff Xuan Geng. This cause of action fails to state sufficient facts as to plaintiff David Hsiu. (Code Civ. Proc., § 340.10, subd. (e); see also <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements].) While the body of the TAC alleges he was a party to the written loan agreement, this is contradicted by the loan agreement attached as Ex. 1 to the TAC, showing that plaintiff Xuan Geng and moving party are the only parties to the written contract. (<i>Holland v. Morse Diesel Intern., Inc.</i> (2001) 86 Cal.App.4th 1443, 1447 [“If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence”].) The TAC does not allege any other facts showing how David Hsiu is a party to the agreement, or overcoming the contrary facts shown in Ex. 1 to the TAC. The remainder of the demurrer to this cause of action is OVERRULED. No defect or misjoinder of parties is apparent from the face of the TAC. (Code Civ. Proc., § 430.10, subd. (d).) While this cause of action currently fails to state sufficient facts as to plaintiff

David Hsiu, he may still be a proper plaintiff, as one who could assert rights and/or claim interests in the same transaction and/or controversy which is the subject of the action. (Code Civ. Proc., § 378, subd. (a).) Conversely, no such interest is claimed by plaintiffs' son (*Id.*), or former defendant Chamroen Chetty (Code Civ. Proc., § 379, subd. (a).)

2nd C/A: common count – open book account; 3rd cause of action: common count – account stated; 4th cause of action: common count – for money lent, had and received.

The demurrer to these causes of action is SUSTAINED, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 340.10, subd. (e).) Quasi-contract claims, such as the common counts alleged here, fail in the face of an express contract governing the same subject matter. (*Eloquence Corporation v. Home Consignment Center* (2020) 49 Cal.App.5th 655, 665 ["moneys due under an express contract cannot be recovered in an action on an 'open book account' in the absence of a contrary agreement between the parties;" internal citations omitted]; *Moore v. Bartholomae Corp.* (1945) 69 Cal.App.2d 474, 477 ["The law is established in California that a debt which is predicated upon the breach of the terms of an express contract cannot be the basis of an account stated"]; *Jalali v. Root* (2003) 109 Cal.App.4th 1768, 1783 ["'quasi-contract' claim for money had and received fails when considered under classic contract doctrine ... '[u]ntil an express contract is avoided,' there cannot be an implied contract, which is 'essential to an action on a common count;" internal citations omitted].)

Plaintiffs have not alleged facts showing that these common counts are alleged in the alternative to their breach of contract cause of action. (See *Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1389-1390 ["Although a plaintiff may plead inconsistent claims that allege both the existence of an enforceable agreement and the absence of an enforceable agreement, that is not what occurred here ... plaintiffs' breach of contract claim pleaded the existence of an enforceable agreement and their unjust enrichment claim did not deny the existence or enforceability of that agreement"].)

		Plaintiffs are granted 15 days leave to file an amended complaint. Moving party shall give notice.
55.	SAN22, LLC v. Ghassemieh 2023-01342781	Defendant Majid Ghassemieh’s motion to set aside default and default judgment is DENIED. Majid Ghassemieh (hereinafter, Majid) has brought this motion on his own behalf and also on behalf of the Estate of Shelli Ghassemieh. First, to the extent Majid has brought this motion on behalf of the Estate of Shelli Ghassemieh—it is denied as Majid is a self-represented litigant. “[A] conservator, executor, or personal representative of a decedent’s estate who is unlicensed to practice law cannot appear in propria persona on behalf of the estate in matters outside the probate proceedings.” (<i>Hansen v. Hansen</i> (2003) 114 Cal.App.4th 618, 619, 621.) Next, even if the court were to consider the merits of the claim on behalf of the Estate of Shelli Ghassemieh, the motion (and that of Majid) is also denied as untimely. Majid has brought motion under the discretionary provision of Code of Civil Procedure section 473, subdivision (b) (section 473(b)). (See Mtn. P&As at p. 5; M. Ghassemieh Decl., in passim.) A motion for relief under the discretionary relief provision of section 473(b) must be made “within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) Because the default and default judgment are separate procedures, a party must seek discretionary relief within six months of <i>each</i> of these procedures—i.e., if a party wants to set aside its <i>default</i>, the motion must be brought within six months of the entry of default. If the party only wants to set aside the default <i>judgment</i> (e.g., because it exceeds the amount demanded in the complaint), the motion need only be filed within six months of the entry of judgment. This six-month time limitation is jurisdictional; the court has no power to grant relief under section 473 once the time has lapsed. (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 928 (<i>Austin</i>).)